

MASTER SERVICES AGREEMENT

EFFECTIVE DATE: August 1, 2026

PARTIES:

- 1. Tata Enterprise Solutions Ltd.**, a company incorporated under the laws of India, having its principal office at Mumbai, Maharashtra ('Company').
- 2. Apex Cloud Technologies Inc.**, a company incorporated under the laws of Delaware, USA ('Vendor').

1. SCOPE OF SERVICES & DELIVERABLES

1.1 Vendor agrees to provide enterprise cloud infrastructure management, software development, and technical support services to the Company as described in Schedule A.

2. FEES AND COMMERCIAL TERMS

2.1 Company shall pay Vendor invoices within Net 60 days of receipt. Company reserves the right to withhold payments on any disputed invoice amounts pending mutual resolution.

3. CONFIDENTIALITY AND DATA PROTECTION

3.1 Both parties agree to protect all confidential information using at least a reasonable degree of care. Confidentiality obligations shall survive termination of this Agreement for a period of five (5) years.

3.2 Vendor shall comply with all applicable data protection laws, including the Digital Personal Data Protection (DPDP) Act of India, ensuring encryption at rest and in transit.

4. INDEMNIFICATION (HIGH RISK CLAUSE FOR TESTING)

4.1 Vendor shall indemnify, defend, and hold harmless Company and its affiliates against any and all third-party claims, liabilities, damages, penalties, and expenses arising out of intellectual property infringement or data breaches without any financial cap.

5. LIMITATION OF LIABILITY (HIGH RISK / NON-STANDARD CLAUSE)

5.1 EXCLUDING INDEMNIFICATION OBLIGATIONS AND GROSS NEGLIGENCE, NEITHER PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL EXCEED 300% OF THE TOTAL FEES PAID IN THE PRECEDING 12 MONTHS.

6. TERMINATION FOR CONVENIENCE

6.1 Company reserves the unilateral right to terminate this Agreement for convenience without cause by providing thirty (30) days advance written notice to Vendor without penalty.

7. GOVERNING LAW AND JURISDICTION

7.1 This Agreement shall be governed by and construed in accordance with the substantive laws of India. The parties agree that the competent courts in Mumbai, Maharashtra shall have exclusive jurisdiction over any

disputes.

8. INTELLECTUAL PROPERTY RIGHTS

8.1 All custom software code, deliverables, documentation, and created IP produced under this Agreement shall vest exclusively with Company as a work made for hire.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date written above.